

TENTATIVE RULING

Case: **Rosales v. Mariani Nut Company**
 Case No. CV2025-2290

Hearing Date: **June 25, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Mariani Nut Company's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's motion to compel arbitration and stay case is **GRANTED**. (9 U.S.C. § 1, et seq.; Code Civ. Proc., § 1281 et seq.; Stenson Decl.) "A party seeking to compel arbitration of a dispute bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Jenks v. DLA Piper Rudnick Gray Cary US LLP* (2015) 243 Cal.App.4th 1, 8; see also *Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 357; *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 380-381.) The Court finds that defendant has established the existence of an arbitration agreement between defendant and plaintiff Andres Rosales. (9 U.S.C. § 4; Code Civ. Proc., § 1281.2; *Jenks, supra*, 243 Cal.App.4th at p. 8; Stenson Decl., ¶¶ 5-13, Exhs. 1-6.) The Court further finds that plaintiff has failed to demonstrate that the arbitration agreement is unconscionable. (Rosales Decl., ¶¶ 4-12; *Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329 [both procedural and substantive unconscionability "must be present before a contract or contract provision is rendered unenforceable on grounds of unconscionability"]; *Carboni v. Arrospide* (1991) 2 Cal.App.4th 76, 83 ["there is a sliding scale relationship between the two concepts: the greater the degree of substantive unconscionability, the less the degree of procedural unconscionability that is required to annul the contract or clause"]; see also *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 87 [same].)

This matter is stayed pending the completion of arbitration. (9 U.S.C. § 3; Code Civ. Proc., § 1281.4.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Samuels v. John Doe Nos. 1-25**
 Case No. CV2026-1200

Hearing Date: **June 25, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for an OSC hearing re plaintiff Brian M. Samuels' request for a preliminary injunction.